

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
RAHEEM SALMON AND KEVIN TELPHA,

Plaintiffs,

-against-

THE CITY OF NEW YORK,
POLICE OFFICER TYSON SHERMAN, AND
POLICE OFFICER EDGAR CONTRERAS,

Defendants.

-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiffs designate Bronx
County as the place of trial.

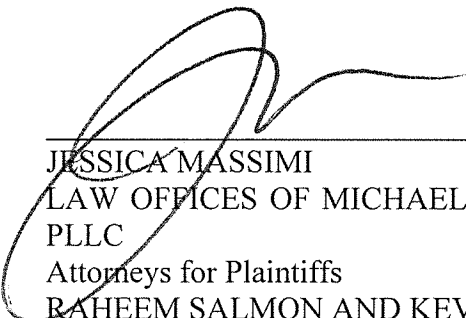
The basis of venue is:
Location of Incident

Plaintiffs reside at:
County of Bronx

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 9, 2018



JESSICA MASSIMI
LAW OFFICES OF MICHAEL S. LAMONSOFF,
PLLC
Attorneys for Plaintiffs
RAHEEM SALMON AND KEVIN TELPHA
32 Old Slip, 8th Floor
New York, New York 10038
212-962-1020

TO:

THE CITY OF NEW YORK
C/O THE NEW YORK CITY LAW DEPARTMENT
100 CHURCH STREET
NEW YORK, NY 10007

POLICE OFFICER TYSON SHERMAN
47TH PRECINCT 4111 LACONIA AVENUE
BRONX, NY 10466

POLICE OFFICER EDGAR CONTRERAS
47TH PRECINCT 4111 LACONIA AVENUE
BRONX, NY 10466

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

-----X
RAHEEM SALMON AND KEVIN TELPHA,
Plaintiffs,

**VERIFIED
COMPLAINT**

-against-

JURY TRIAL
DEMANDED

THE CITY OF NEW YORK,
POLICE OFFICER TYSON SHERMAN, AND
POLICE OFFICER EDGAR CONTRERAS,

Defendants.

-----X
Plaintiffs, RAHEEM SALMON AND KEVIN TELPHA, by and through their attorneys,
THE LAW OFFICES OF MICHAEL S. LAMONSOFF, PLLC, as and for their Verified
Complaint, respectfully allege, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiffs brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of their civil rights, as said rights are secured by said statutes and the Constitution of the United States of America.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.
3. Jurisdiction is founded upon 28 U.S.C. §§ 1331, 1343, and 1367.
4. This court has jurisdiction over each state court claim as well as each federal claim pursuant to concurrent jurisdiction.

NOTICE OF CLAIM

5. Plaintiffs filed Notices of Claim with the Comptroller of the City of New York within 90 days of the accrual of their claims for false arrest.
6. More than 30 days have elapsed since the filing of the Notice of Claim, and adjustment or payment thereof has been neglected or refused.
7. This action was commenced within one year and ninety days from the date the pendent claims herein accrued for false arrest.
8. Plaintiffs have complied with all conditions precedent necessary to commence a case against the City of New York.

VENUE

9. Venue is properly laid in the Supreme Court of the State of New York, in that the events giving rise to this claim occurred in Bronx County in the State of New York.

JURY DEMAND

10. Plaintiffs respectfully demand a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

11. Plaintiffs, RAHEEM SALMON AND KEVIN TELPHA, are, and have been, at all relevant times, residents of the City and State of New York.
12. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
13. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to

perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.

14. At all times hereinafter mentioned, the individually named defendant, POLICE OFFICER TYSON SHERMAN, was a duly sworn member of said department and was acting under the supervision of said department and according to his official duties. Defendant Sherman is sued herein in his official and individual capacities. At all times hereinafter mentioned, Defendant Sherman was assigned to the 47th Precinct of the NYPD.
15. At all times hereinafter mentioned, the individually named defendant, POLICE OFFICER EDGAR CONTRERAS, was a duly sworn member of said department and was acting under the supervision of said department and according to his official duties. Defendant Contreras is sued herein in his official and individual capacities. At all times hereinafter mentioned, Defendant Contreras was assigned to the 47th Precinct of the NYPD.
16. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.
17. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.
18. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW

YORK.

FACTS

19. On January 28, 2017, at approximately 2:00 p.m., Plaintiffs RAHEEM SALMON AND KEVIN TELPHA were lawfully present at Jacobi Medical Center in Bronx County, where they had been brought by ambulance, and where they were seeking medical attention for injuries they sustained when they were attacked earlier that day by another civilian.
20. While the Plaintiffs were seeking medical attention at Jacobi Medical Center, the individual Defendants arrived on uniform and on duty.
21. Without any legal justification or excuse, the Defendants approached Plaintiffs and began searching them.
22. The search revealed no evidence of any guns, drugs, or contraband.
23. Plaintiffs were not engaged in any unlawful or suspicious activity.
24. Nonetheless, the Plaintiffs were formally arrested, placed in handcuffs, and were transported to the station house of a local area precinct believed to be the 47th Precinct where they were searched and detained for several hours.
25. The search yielded no evidence of any guns, drugs, or contraband
26. At no time on January 28, 2017, did Plaintiffs commit any crime or violation of law.
27. At no time on January 28, 2017, did Defendants possess probable cause to arrest Plaintiffs or to order Plaintiffs' arrests.
28. At no time on January 28, 2017, did Defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest Plaintiffs.

29. Plaintiffs were held for several hours at the stationhouse before they were transported to Bronx County Central Booking where they were held for several additional hours before they were arraigned on a criminal complaint containing false allegations provided by the Defendants.
30. The allegations were false and Defendants knew they were false when they made them.
31. Pursuant to these false allegations, the Plaintiffs were criminally charged.
32. The Defendants provided knowingly false and misleading information to prosecutors at the Bronx County District Attorney's Office.
33. Each of the allegations were false and the Defendants knew them to be false when they were made.
34. As a result of the foregoing, Plaintiffs RAHEEM SALMON AND KEVIN TELPHA sustained, *inter alia*, embarrassment, humiliation, physical injuries, and deprivation of their constitutional rights.
35. All of the aforementioned acts of Defendants, their agents, servants and employees, were carried out under the color of state law.
36. All of the aforementioned acts deprived Plaintiffs of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and were therefore in violation of 42 U.S.C. Section 1983.
37. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.

38. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
39. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted custom, usage, practice, procedure or rule of respective municipality/authority, which is forbidden by the Constitution of the United States.

**FIRST CLAIM FOR RELIEF FOR
FALSE ARREST
UNDER 42 U.S.C. § 1983**

40. Plaintiffs RAHEEM SALMON AND KEVIN TELPHA repeat, reiterate, and reallege each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
41. As a result of the Defendants' conduct, Plaintiffs were subjected to illegal, improper and false arrest, taken into custody, and caused to be falsely imprisoned, detained, and confined without any probable cause, privilege, or consent.
42. As a result of the foregoing, Plaintiffs' liberty was restricted, they were put in fear for their safety, and they were falsely arrested without probable cause

**SECOND CLAIM FOR RELIEF
FOR MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

43. Plaintiffs, repeat, reiterate, and reallege each and every allegation set forth above with the same force and effect as if fully set forth herein and at length.
44. Defendants arrested, searched, and incarcerated plaintiffs, in the absence of any evidence

of criminal wrongdoing, notwithstanding their knowledge that said search, arrest and incarceration would jeopardize Plaintiffs' liberty, well-being, safety, and violate their constitutional rights.

45. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
46. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of THE CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.
47. Those customs, policies, patterns, and practices include, but are not limited to:
 - i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
 - iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
 - iv. failing to properly train police officers in the requirements of the United States Constitution.
48. The aforesaid customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department directly cause, *inter alia*, the following unconstitutional practices:
 - i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics;
 - ii. arresting individuals regardless of probable cause in order to positively

affect precinct-wide statistics;

iii. falsifying evidence and testimony to support those arrests;

iv. falsifying evidence and testimony to cover up police misconduct.

49. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department constitute a deliberate indifference to the safety, well-being and constitutional rights of Plaintiffs.
50. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiffs as alleged herein.
51. The foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiffs as alleged herein.
52. As a result of the foregoing customs, policies, usages, practices, procedures and rules of THE CITY OF NEW YORK and the New York City Police Department, Plaintiffs were placed under arrest unlawfully.
53. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiffs.
54. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiffs' constitutional rights.

55. All of the foregoing acts by defendants deprived Plaintiffs of federally protected constitutional rights, particularly their Fourth and Fourteenth Amendment rights to be free from unreasonable search and seizure.

**THIRD CAUSE OF ACTION
FALSE ARREST
PURSUANT TO STATE LAW**

56. Plaintiffs repeat and reiterate the allegations set forth in the foregoing paragraphs with the same force and effect as though fully stated herein.
57. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK assumed responsibility supervision, and authority over THE NEW YORK CITY POLICE DEPARTMENT and, its agents, servants and employees, and is liable to plaintiff for the acts complained of herein under the theories of vicarious liability and *respondeat superior*.
58. That as a direct, sole and proximate result of the false arrest, plaintiffs were caused to and did sustain loss of their constitutional rights, humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal and business reputation, inconvenience, disturbance and disruption of life, legal expenses, and loss of personal income.
59. By the actions described above, the Defendants caused plaintiffs to be falsely arrested without probable cause, illegally, without any proper claims, and without any right or authority to do so. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to the Plaintiffs and violated his statutory and common law rights as guaranteed by the laws of the Constitution of the State of New York.

60. As a result of the foregoing, Plaintiffs were deprived of their liberty, suffered a loss of quality and/or enjoyment of life, economic injury, physical injury, psychological injury and emotional distress, great humiliation, costs and expenses, and were otherwise damaged and injured.

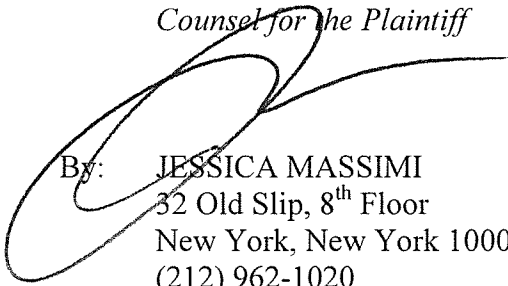
WHEREFORE, the Plaintiffs respectfully request judgment against each Defendant on each of the foregoing causes of action as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. §1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
February 9, 2018

Respectfully submitted,

**LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC**
Counsel for the Plaintiff



By: JESSICA MASSIMI
32 Old Slip, 8th Floor
New York, New York 10005
(212) 962-1020

VERIFICATION

JESSICA MASSIMI, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LAW OFFICES OF MICHAEL S. LAMONSOFF, attorneys of record for Plaintiffs, RAHEEM SALMON AND KEVN TELPHA, in the action within. I have read the annexed

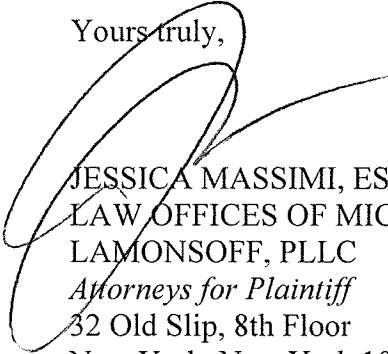
SUMMONS AND VERIFIED COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiffs is that Plaintiffs are not presently in the county wherein the attorneys for the Plaintiffs maintain their offices.

Dated: New York, New York
February 9, 2018

Yours truly,



JESSICA MASSIMI, ESQ.
LAW OFFICES OF MICHAEL S.
LAMONSOFF, PLLC
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